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| CASE #      | CASE NAME                       | HEARING NAME                                                                                                            |
|-------------|---------------------------------|-------------------------------------------------------------------------------------------------------------------------|
| CVPS2403177 | SPENCER VS FC&YT LOGISTICS INC. | MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS (CELL PHONE RECORDS) AND TO COMPEL PRODUCTION |

**Tentative Ruling:**

The Motion is Untimely

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (CCP § 2031.310(c).) “The 45-day time limit is mandatory and “jurisdictional” (court has no authority to grant a late motion.)” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1491 citing *Sexton v. Sup. Ct. (Mullikin Med. Ctr.)* (1997) 58 Cal.App.4<sup>th</sup> 1403, 1410 [“late-filed motion to compel must be denied where objection raised at hearing even if omitted in opposition papers.”].)

“The 45-day deadline runs *from the date the verified response is served ....*” (Weil & Brown, *supra.* at § 8.1491.1 citing CCP § 2031.310(c); *Standon Co., Inc. v. Sup. Ct. (Kim)* (1990) 225 Cal.App.3d 898, 903.) Notably, a response with only objections does not need to be verified and is complete on the date of service. (Weil & Brown, *supra.* at §§ 8:1150.7-8:1150.8.) The 45-day deadline is also extended for the time needed to affect service. (CCP §§ 1010.6(a)(3), 1013.)

Here, Gao provided his responses on 5/15/26. The 45-day motion to compel deadline was triggered at that time (plus time for service, i.e., extended by five days for service by mail.) This motion was filed/served on 8/12/26, more than 45 days after Gao had provided his responses. Notably, there was no agreement in writing as to a specific later date to file a motion to compel further responses to RPD3. Therefore, Plaintiff did not timely file this motion to compel Gao’s cell phone records. In other words, Plaintiff waived her right to file this motion. As a result, this motion is untimely and must be denied.

Plaintiff also seeks alternative relief through this motion – a court order requiring Gao to sign an authorization to allow Verizon to release his cell phone records for a limited time just prior to, and just after the accident for the purpose of determining if Gao was on his cell phone at the time the accident occurred. Plaintiff asserts that she cannot obtain Gao’s cell phone records from Verizon without Gao’s authorization. However, **there is no authority for a motion to compel a party to execute an authorization for their personal records.** The court’s general powers are insufficient to require this action. Moreover, there is nothing for the court to compel because Gao has no obligation to sign an authorization, and there is no legal authority for a motion to compel a plaintiff to execute an authorization. Therefore, the motion must also be denied on the alternative basis.